

immunity.” *Id.* Because it concluded that Congress did not codify standards governing the immunity of foreign officials, the Supreme Court held that the common law, two-step procedure remains in place for determinations of foreign official immunity. *Id.* at 323–25.

As courts have long recognized, the separation of powers requires courts to defer to the Executive Branch’s determination regarding foreign official immunity. *See Habyarimana v. Kagame*, 696 F.3d 1029, 1032 (10th Cir. 2012) (“We must accept the United States’ suggestion that a foreign head of state is immune from suit . . . ‘as a conclusive determination by the political arm of the Government that the continued [exercise of jurisdiction] interferes with the proper conduct of our foreign relations.’” (quoting *Ex Parte Republic of Peru*, 318 U.S. at 589) (first alteration added, second alteration in original)); *Matar v. Dichter*, 563 F.3d 9, 15 (2d Cir. 2009) (“Here, the Executive Branch has urged the courts to decline jurisdiction over appellants’ suit, and under our traditional rule of deference to such Executive determinations, we do so.”). Indeed, as the Court of Appeals for the Seventh Circuit observed in *Ye v. Zemin*, 383 F.3d 620 (2004), “[i]t is a guiding principle in determining whether a court should [recognize a suggestion of immunity] in such cases, that the courts should not so act as to embarrass the executive arm in its conduct of foreign affairs . . . by assuming an antagonistic jurisdiction.” *Id.* at 626 (quoting *Hoffman*, 324 U.S. at 35) (alteration in original)).

In the absence of a controlling statute, the common law governing foreign official immunity constitutes a “rule of substantive law” requiring courts to “accept and follow the executive determination” concerning a foreign official’s immunity from suit. *Hoffman*, 324 U.S. at 36; *see also Spacil v. Crowe*, 489 F.2d 614, 619 (5th Cir. 1974) (“When the executive branch has determined that the interests of the nation are best served by granting a foreign sovereign